

"Documented Dreamers" refers to a relatively unknown group of young people in the United States who grew up with immigration status tied to their parents' temporary work visas. When these individuals reach the age of 21, they "age out" of their previous lawful status, which means they can no longer rely on their parents' visas for legal status. At this point, they must either independently secure their own immigration status or leave the country. If they do not leave, they face the possibility of immigration enforcement and deportation. In essence, Documented Dreamers are at risk of deportation once they lose their dependent status at age 21.

- **Adjustment to LPR Status:** If a parent can obtain Lawful Permanent Resident (LPR) status, commonly known as a green card before their children turn 21, the children are eligible to obtain permanent residency through the same process.
- **Eligibility Challenges:** Many temporary workers, including the parents of these children, are not eligible to adjust their immigration status to LPR. Additionally, some are stuck in lengthy green card backlogs, especially immigrants from India and China, due to per-country caps.
- **Lengthy Wait Times:** A study reveals that certain Indian nationals may have to wait up to 89 years to receive a green card due to these backlogs.
- **Child Waiting List:** As of April 2020, approximately 253,293 children were waiting to obtain a green card through their parents' employment-based immigrant visa petitions.
- **Aging Out Risk:** It is estimated that over 100,000 of these waiting children will reach age 21 before their families can adjust their immigration status, making them vulnerable to losing their eligibility for permanent residency.
- **DACA Eligibility:** Many undocumented Dreamers were eligible for Deferred Action for Childhood Arrivals (DACA) status. However, one of DACA's requirements is that the individual must have "had no lawful status on June 15, 2012," making most Documented Dreamers ineligible because they had lawful status at that time.
- **Rising Awareness:** Documented Dreamers have gained increased public attention. For instance, Documented Dreamer Pareen Mhatre testified at a Congressional hearing on barriers to legal immigration in April 2021.
- **Proposed Legislation:** Some proposed legislation aims to provide relief to Documented Dreamers. However, it remains pending in Congress.
- **Dream Act:** The Dream Act could potentially offer a path to citizenship for certain Documented Dreamers, depending on the version of the bill passed by Congress.

- **American Dream and Promise Act (H.R. 6):** Currently pending in the U.S. House of Representatives, this act would offer a path to citizenship for most Documented Dreamers currently in the United States and some who have already had to leave the country.
- **The America's CHILDREN Act of 2021 (H.R. 4331):** This proposed legislation has gained broad bipartisan support in both chambers of Congress and focuses on Documented Dreamers. It offers a path to citizenship for specific Documented Dreamers and offers several advantages over H.R. 6.
- **Broader Eligibility:** H.R. 4331 includes the children of parents who entered the U.S. with various additional types of temporary work visas, expanding eligibility beyond certain categories.
- **Permanent Path to Citizenship:** Unlike H.R. 6, H.R. 4331 proposes a permanent path to citizenship for both current and future Documented Dreamers, rather than providing one-time protection for a specific group.
- **Prevention of Aging Out:** H.R. 4331 aims to prevent Documented Dreamers from aging out of eligibility. As long as an immigrant visa petition or labor certification application is filed on their parent's behalf before the child turns 21, they would remain eligible.
- **Criminal History Consideration:** The bill does not exclude Documented Dreamers based on criminal history except for national security grounds, which is more inclusive compared to some other proposals.
- **Education Requirement:** H.R. 4331 requires Documented Dreamers to have graduated from an institution of higher education.